

4.

CASE #	CASE NAME	HEARING NAME
CVSW2402536	PRICE vs EUROPA VILLAGE, LLC	MOTION FOR SUMMARY JUDGMENT ON COMPLAINT

Tentative Ruling: The Court **DENIES** Defendant Europa Village LLC's Motion for Summary Judgment.

Plaintiff asserts two causes of action for negligence and premises liability. "The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury." (Kesner v. Superior Court (2016) 1 Cal.5th 1132, 1158.) A premises liability claim is based on the possession of the premises and the property owner/manager/renter's right to control and manage the property. (Id.) "But the duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases." (Id.) "It is now well established that California law requires landowners to maintain land in their possession and control in a reasonably safe condition." (Ann M. v. Pacific Plaza Shopping Center (1993) 6 Cal.4th 666, 674.) To comply with this duty, "a person who controls property must 'inspect [the premises] or take other proper means to ascertain their condition' and, if a dangerous condition exists that would have been discovered by the exercise of reasonable care, has a duty to give adequate warning of or remedy it." (Staats v. Vinter's Golf Club, LLC (2018) 25 Cal.App.5th 826, 833.)

Defendant argues that Plaintiff's claims for both negligence and premises liability fail because it owes Plaintiff no duty of care pursuant to Civil Code § 846. Civ. Code § 846 provides: "[a]n owner of any estate or any other interest in real property, whether possessory or nonpossessory, owes no duty of care to keep the premises safe for entry or use by others for any recreational purpose or to give any warning of hazardous conditions, uses of, structures, or activities on those premises to persons entering for a recreational purpose, except as provided in this section." (Civ. Code § 846(a).) The term "recreational purpose" "includes activities such as fishing, hunting, camping, water sports, hiking, spelunking, sport parachuting, riding, including animal riding, snowmobiling, and any other types of vehicular riding, rock collecting, sightseeing, picnicking, nature study, nature contacting, recreational gardening, gleaning, hang gliding, private noncommercial aviation activities, winter sports, and viewing or enjoying historical, archaeological, scenic, natural, or scientific sites." (Civ. Code § 846(b).)

Section 846 of the Civil Code was enacted to encourage properties owners to allow land to be used by others for recreational purposes. (Gerkin v. Santa Clara Valley Water Dist. (1979) 95 Cal.App.3d 1022, 1026.) "The purpose of section 846 is to encourage property owners to allow the general public to recreate free of charge on privately owned property. Before the statute's enactment, there had been a 'growing tendency' among California landowners to withdraw land from recreational access because of the potential liability they faced under section 1714." (Hoffmann v. Young (2022) 13 Cal.5th 1257, 1268 [internal quotations and citations omitted].) The legislature felt Civil Code § 846 would help fix this problem. (Id.)

Defendant argues that Plaintiff went to the Property to go on a sightseeing tour, so he was at the Property for a recreational purpose. Defendant cites to Plaintiff's deposition

testimony as support for this proposition. (UMF # 3.) However, nowhere in the deposition testimony presented to the Court by Defendant does Plaintiff state that he went to the Property to go sightseeing. (See, Defendant's Notice of Lodgment of Exhibits ("NOL"), Ex. B.) Accordingly, Defendant fails to show that Plaintiff was at the Property for a recreational purpose.

Additionally, Civ. Code § 846 does not limit liability: (1) when the property owner willfully or maliciously fails to guard or warn against a dangerous condition/use/structure/activity; (2) for "[i]njury suffered in any case where permission to enter for the above purpose was granted for a consideration other than the consideration, if any, paid to said landowner by the state, or where consideration has been received from others for the same purpose"; and (3) where the individual was expressly invited to the premises by the landowner. (Civ. Code § 846(d).) "[I]f an owner expressly invites someone onto the property and the person is injured while using the land for a recreational purpose, then the general release from liability is abrogated." (Hoffmann, *supra*, 13 Cal.5th at 1268–69.)

Defendant presents evidence that it did not direct any invitation to the Property personally to Plaintiff, and the email Plaintiff received was sent to over 8,000 former members of Defendant's various wine clubs. (Decl. of James Flores ["Flores Decl."] at ¶ 3-5.) It also presents evidence that there was no fee to enter the Property at the time of the incident. (Flores Decl. at ¶ 6.)

In opposition, Plaintiff presents evidence that the email invitation sent to him and other former wine club members was sent by Defendant "to encourage them to rejoin the wine club." (Deposition of Daniel Lee Stephenson, attached to COE as Ex. D, p. 23:8-24:3; see also, COE, Ex. D, p. 10:12-16 [invitation was sent to former wine club members so they could see what was new at the Winery and "to see if they wanted to rejoin the wine club"]; Deposition of Dona Duncan, attached to COE as Ex. F, p. 11:3-11; Invitation, attached to Plaintiff's Compendium of Exhibits ["COE"] as Ex. C; Email, attached to COE as Ex. E.) In deposition, Defendant's representatives acknowledged that Defendant's objective in getting the former members to rejoin the wine club was for Defendant's financial benefit. (COE, Ex. D, pp. 23:23-24:10.) Additionally, the email stated: "if you rejoin [the wine club] the day of the event, you will receive 40% off any purchases that day." (COE, Ex. E.)

Based on this evidence, the email/invitation was not sent to the general public, but to specific individuals (those who had previously been members of Defendant's wine clubs), and with a specific purpose (to get them to rejoin Defendant's wine club). (Flores Decl. at ¶¶ 3, COE, Ex. C; Ex. D, pp. 10:12-16, 23:8-24:10; Ex. E; Ex. F, p. 11:3-11.) Whether an invitation, directed at a specific group of people, one of whom later attends the event advertised, is an express invitation to that person is a triable issue of material fact. (See, *Phillips v. United States* (9th Cir. 1979) 590 F.2d 297, 299–300 ["We do not reach the question whether promotional literature mailed to a person who thereafter visits the advertised park can be an express invitation within the meaning of section 846."].)

Additionally, the evidence presented shows that the invitation sent to Plaintiff and others was intended to encourage those individuals to rejoin Defendant's wine club, and Defendant's objective in getting them to rejoin was to obtain a financial benefit. (COE, Ex.

C; Ex. D, pp. 10:12-16, 23:8-24:10; Ex. E; Ex. F, p. 11:3-11.) Civ. Code § 846(d) states that liability for a person who enters property for a recreational purpose is not limited if permission to enter the property “was granted for a consideration other than the consideration, if any, paid to said landowner by the state, or where consideration has been received from others for the same purpose.” (Civ. Code § 846(d)(2).) Whether former wine club members rejoining Defendant’s wine club, thereby providing Defendant with a financial benefit, because they were invited to the tour wherein the incident occurred is consideration for their entry on the Property is also a triable issue of material fact.

Accordingly, the Court DENIES the motion.